

**MEMORANDUM OF AGREEMENT
BETWEEN
SEATTLE PARKS AND RECREATION
AND
SEATTLE DEPARTMENT OF FINANCE AND ADMINISTRATIVE SERVICES
FOR
STAFFING TO SUPPORT "MAKING PARKS SAFER" INITIATIVE**

1. INTRODUCTION

This Memorandum of Agreement ("Agreement") is made by and between Seattle Parks and Recreation ("SPR") and the Department of Finance and Administrative Services ("FAS"), representing its Seattle Animal Shelter ("Shelter") business unit. This agreement addresses scope of work, invoicing and billing, and reporting for the Making Parks Safer initiative, one of the component elements of the broader Maintaining Parks and Facilities initiative funded by the Seattle Park District ("Park District").

This Agreement is for the funding by SPR, through the Park District, of a 1.0 FTE Animal Control Officer II ("ACO") who is employed by the Shelter. The ACO will work in a team with a Facilities Maintenance Worker ("FMW") employed by SPR. (The term "the ACO" encompasses the possibility that more than one ACO may perform the work program defined here.) The team's work program is to educate the public and enforce dog leash and scoop laws at SPR park locations, especially those locations with a history of complaints, violations and impacts to users and/or natural resources based on park users' non-compliance with these laws.

2. TERM OF AGREEMENT

The term of this Agreement shall begin when fully executed by all parties and shall end on December 31, 2020, unless amended by written agreement or terminated earlier. It is anticipated that the work program described in this Agreement will continue for the remaining five years of this Park District funding cycle (2015 - 2020) and that the parties will mutually amend or renegotiate the Agreement on an as-needed basis.

3. BILLING AND PAYMENT

Total compensation under this Agreement shall not exceed \$500,000.

During the term of this Agreement, SPR will reimburse FAS for all hours worked under this agreement at the applicable ACO II hourly rate, including Annual Wage Increases (AWI), and an additional 35% for all employee benefits. Overtime is not included unless pre-authorized by SPR. The ACO II will remain on the FAS payroll and code hours worked to a project code. Timesheets will be approved by the SPR supervisor.

In addition SPR will reimburse FAS for one-time costs of \$4000 for the establishment of the work program and supply costs of \$3000.

FAS will submit itemized monthly invoices to SPR Accounting including actual hours paid plus the 35% benefits multiplier, a pro-rated portion of the supply costs and FAS overhead costs assumed in the adopted Central Cost Manual. FAS will include the one-time costs on its first invoice of 2016. SPR Accounting will consolidate these invoices and pay FAS quarterly for its incurred costs. FAS will include the one-time costs on its first invoice of 2016. SPR Accounting will consolidate these invoices and pay FAS quarterly for its incurred costs.

4. WORK SCHEDULE

The work described in this Agreement will take place on a Wednesday-through-Saturday schedule. Work hours will vary by season and programmatically, based on high-use times and in order to maximize the number of daylight hours the team can spend in parks. The ACO will report to the Shelter on 15th Avenue NW or to the Shelter's Enforcement Facility at 801 Dearborn where s/he will be picked up by the FMW and then depart for the day's planned itinerary. FAS will inform SPR at least two weeks in advance of any change in location of where the ACO is to be picked up and dropped off (i.e., whether it be at the Shelter or at 801 Dearborn). Alternatively, by mutual agreement, the ACO may be picked up and dropped off at SPR's maintenance facility at Westbridge. The ACO and the FMW will spend 10 hours per day engaged in the work described in this agreement, including the time spent to travel to and between parks and to return to either the Shelter or 801 Dearborn.

5. SCOPE OF WORK

While they work as a team, the ACO and the FMW will seek to educate park users and promote compliance with all applicable animal-control laws in SPR parks. Enforcement of these laws is within the purview of the Shelter, and the ACO will have the discretionary authority to issue citations for non-compliance. It is anticipated, however, that the work program will be primarily educational and that park users' observation of the ACO/FMW team will have a deterrent effect in terms of non-compliance. The FMW may also carry out identified or ad hoc service and/or maintenance tasks in the parks; enforce the City Park Code; provide basic customer service to park users; collect information about park use, conditions, and more complex service and/or maintenance needs; and other duties as assigned. SPR and FAS will establish guidelines by which they will create the team's work itineraries and the degree to which these itineraries will remain flexible, for instance to respond to emergent issues and/or complaints.

6. CONDITIONS OF WORK

While in a park, the FMW will always maintain line-of-sight contact with the ACO at all times and be ready to move into close physical proximity should an interaction with a park user become charged. The FMW and the ACO should view themselves as a team, working together and communicating with each other to address issues of concern to both SPR and FAS.

The ACO will carry a wooden baton, which may be used as a tool or barrier to push away an aggressive animal. The FMW will carry similar protective equipment. The ACO and FMW will both carry cell

phones as well as any other equipment mutually agreed to by SPR and FAS.

7. DOCUMENTATION AND REPORTING

SPR will provide the ACO with the electronic equipment needed to record the origin and type of interaction with a member of the public, the infraction observed, and the result of the interaction. (E.g., patrol and incident; scoop violation; warning). SPR will also collect data on the location and time of each interaction and on each visit by the team to a single park. SPR may also collect other points of data that reasonably relate to the work program and its goal of Making Parks Safer. If the electronic means to collect data are not available due to equipment unavailability or failure, SPR will provide the ACO with the means to collect this data manually. In that case SPR will be responsible for transferring the data to the appropriate system and for returning the electronic equipment to use as soon as possible.

Within five working days of the end of each month, SPR will provide to FAS a summary report on that month's data, which FAS will include with its invoice to SPR Accounting.

8. ASSIGNMENT

This Agreement shall not be assigned in whole or in part by either party without the prior written approval of the other party.

9. COMPLIANCE WITH LAW

The parties to this agreement shall comply with all federal, state, and local laws and ordinances.

10. ENTIRE AGREEMENT

This Agreement constitutes the complete contractual agreement of the parties, and any oral representations or understandings not incorporated herein are excluded.

IN WITNESS WHEREOF, in consideration of the terms, conditions, and covenants contained herein, or attached and incorporated and made a part hereof, the parties have executed this Agreement by having their representatives affix their signatures below.

**CITY OF SEATTLE
SEATTLE PARKS AND RECREATION**

By _____ Date _____
Jesús Aguirre
Director
Seattle Parks and Recreation

**CITY OF SEATTLE
DEPT. OF FINANCE AND ADMINISTRATIVE SERVICES**

By  3.2.16
Fred Podesta
Director
Finance and Administrative Services